

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

JUAN SANCHEZ,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER SEAN
MCCARREN, Tax # 943542 and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Queens
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
June 12, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SEAN MCCARREN, Tax # 943542, 104th Precinct, 6402 Catalpa
Ave, Ridgewood, NY 11385

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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JUAN SANCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SEAN
MCCARREN, Tax # 943542 and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JUAN SANCHEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 16, 2014, at approximately 2:00 a.m., plaintiff was lawfully walking in the vicinity of Gates Avenue and Grandview Avenue, Queens, New York, when the individually named New York City police officer defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Thereafter, the officers subjected plaintiff to an unlawful strip search. Those officers that did not physically touch plaintiff are liable for failing to intervene and stop the unlawful conduct against claimant that was being committed by their fellow officers. All criminal charges against plaintiff were dismissed and sealed on March 16, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and, denied plaintiff the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Juan Sanchez is a resident of the state of New York.

3. POLICE OFFICER SEAN MCCARREN, Tax # 943542, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER SEAN MCCARREN, Tax # 943542, is and was at all times relevant herein, assigned to 104th Precinct.

5. POLICE OFFICER SEAN MCCARREN, Tax # 943542 is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-4 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

11. In accordance with General Municipal Law 50-h, a hearing was conducted on July 25, 2014

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On March 16, 2014, at approximately 2:00 a.m., plaintiff was lawfully walking in the vicinity of Gates Avenue and Grandview Avenue, Queens, New York, when the individually named New York City police officer defendants unlawfully approached plaintiff and proceeded to unlawfully stop, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

16. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

17. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on March 16, 2014, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

18. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

19. The individually named police officers unlawfully searched plaintiff's person without probable cause or any legal justification and did not locate any illegal drugs weapons or contraband as a result of the search.

20. Plaintiff was unlawfully placed in a police vehicle, and transported to the 104th precinct.

21. Eventually plaintiff was brought to the 104th Precinct stationhouse whereat the defendant police officers unlawfully searched plaintiff again, unlawfully fingerprinted and photographed him and detained him in a holding cell.

22. While at the precinct, plaintiff was subjected to an unlawful strip search without reasonable suspicion or probable cause.

23. Notably, at no point in time did the defendant police officers recover any drugs, guns, or contraband of any kind from plaintiff at the precinct.

24. Thereafter, on March 16, 2014, plaintiff was transported to Queens Central Booking.

25. On March 16, 2014, after approximately 20 hours in custody, the Queens District Attorney's Office decided there was no probable cause to believe that plaintiff committed a crime and declined to prosecute plaintiff.

26. Thus, all charges against plaintiff were dismissed by the Queens District Attorney's Office on March 16, 2014 and plaintiff was released.

27. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, and illegal strip search of plaintiff.

28. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

29. As a result of defendant City of New York and the New York City Police Department's policy of unlawfully stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and unlawful behavior, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason.

30. A Federal Court has entered judgment against the City of New York and the NYPD after a Federal trial covering the time period of the underlying incident in this case and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

31. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

32. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, deny plaintiff his due process rights and deny plaintiff the right to a fair trial and did nothing from stopping the violations from continuing.

33. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, and falsely imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Plaintiff was searched by defendants without an individualized reasonable suspicion or probable cause to believe that plaintiff was concealing weapons or other contraband, based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

58. As a result of the aforementioned conduct of defendants, plaintiff Bernard Miller sustained injuries.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Juan Sanchez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

71. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

76. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

79. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

80. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

TENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unconstitutionally Stopping, Questioning, Frisking, and Searching Individuals in violation of the Fourth and Fourteenth Amendments to the United States Constitution

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein

82. A Federal Court has already entered judgment against the City of New York after a trial and found that for a many years, including the time period of June 5, 2013, the date plaintiff was arrested, defendant City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

83. A Federal Court has already entered judgment against the City of New York and the NYPD after a Federal trial and found that the City of New York and the NYPD had a policy, practice or custom within the New York City Police Department, wherein at the time of the underlying incident in this case, New York City Police Officers illegally and unconstitutionally stop, question, frisk and search, individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance. See Floyd v. City of New York, 08-Civ. -1034 (SAS), Opinion and Order (S.D.N.Y. Aug. 12, 2013).

84. As a result of defendant City of New York and the New York City Police Department's policy of unconstitutionally stopping, questioning, frisking and searching individuals, which are conducted without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct these stops and searches without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so.

85. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Fourth Amendment to the Constitution of the United States.

86. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of Yonkers,

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SEAN MCCARREN, Tax # 943542, 104th Precinct, 6402 Catalpa
Ave, Ridgewood, NY 11385

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 12, 2015

/s/
STUART E. JACOBS